

CHAPTER 1**GENERAL DEFINITIONS**

001. SCOPE AND AUTHORITY. These regulations govern the services provided under Nebraska's Medicaid program as defined by the Medical Assistance Act, Nebraska Revised Statute § 68-901 et seq.

002. DEFINITIONS.

002.01 ABSENT PARENT. A parent who is not living with his or her child(ren).

002.02 ADEQUATE NOTICE. Notice of case action, which includes a statement of what action(s) are intended, the reason(s) for the intended action(s), and the specific manual reference(s) that supports or the change in federal or state law that requires the action(s).

002.03 AFFORDABLE CARE ACT (ACA). The Patient Protection and Affordable Care Act of 2010, as amended by the Health Care and Education Reconciliation Act of 2010, as amended by the Three Percent Withholding Repeal and Job Creation Act.

002.04 A-NUMBER. Alien registration number, which is assigned to a noncitizen when he or she enters the United States.

002.05 APPLICANT. An individual who is seeking an eligibility determination through submission of an application or a transfer from another agency or insurance affordability program.

002.06 APPLICATION. A request for Medicaid benefits submitted by an applicant or his or her authorized representative via a Department-approved format.

002.07 APPLICATION DATE. For new and reopened cases, the date a properly signed application is received.

002.08 APPLICATION SIGNATURE. Applications may be signed in writing, by telephonic signature, or by electronic signature.

002.09 APPLICATION SUBMISSION. Applications may be submitted in person, by mail, by telephone, by fax, or by electronic transmission.

002.10 APPROVAL OR DENIAL DATE. The date that a new or reopened case is determined eligible or denied by the Department.

002.11 ASSIGNMENT. The transfer of a client's right to third-party resources to the Department, which is accomplished by the submission and approval of an application.

002.12 AUTHORIZED REPRESENTATIVE. A person or organization authorized by an applicant, client, or court of competent jurisdiction to represent the applicant or client in any matter(s) with the Department.

002.13 BUDGET MONTH(S). The calendar month(s) for which verification of eligibility factors is used to compute eligibility.

002.14 CASUALTY. The legal obligation of a third party to indemnify an injured person for damages caused by the third party or for which the third party is otherwise responsible.

002.15 CHILD SUPPORT. Money that is ordered by a court of competent jurisdiction to be paid by a noncustodial parent on behalf of a minor child or money that is paid by a noncustodial parent on behalf of a minor child without a court order.

002.16 CLIENT. An individual who has been determined eligible for and is currently receiving Medicaid. _

002.17 COURT OR TRIBAL WARD. A child whose custody is committed to a court or other public agency. In order to receive payment from the Department that is otherwise permitted or required, the court or other public agency must be authorized under state law for the placement and supervision of children, and the court or other public agency must have a written agreement with the Department to ensure that Title IV-E requirements are met.

002.18 COURT ORDER. A document signed by a judge and entered into the court record in a court of competent jurisdiction.

002.19 CREDITABLE HEALTH INSURANCE COVERAGE. Any current health insurance coverage, except a plan that is limited to a single condition, such as cancer insurance, dental insurance, or long-term care insurance.

Insurance to which an individual does not have reasonable geographic access is not creditable coverage.

002.20 CURRENT SUPPORT. The monthly amount of child support or spousal support ordered by a court of competent jurisdiction.

002.21 DEEMING. The process of determining the amount of income and resources of a parent or sponsor that must be considered available to meet the client's needs. Deeming does not apply to pregnant women or children.

002.22 DENIAL. A case in which an application was completed, signed, and submitted, but the applicant did not meet eligibility requirements.

002.23 DEPARTMENT. The Nebraska Department of Health and Human Services (DHHS), Division of Medicaid and Long-Term Care (MLTC). The Department is the single state agency designated to administer and supervise the administration of the Medicaid program under Title XIX of the federal Social Security Act, as amended.

002.24 DEPENDENT CHILD. A child from birth through 17 years old; or who is 18 years old and a full-time student in secondary school or equivalent vocational or technical training, if before attaining 19 years of age the child may reasonably be expected to complete school or training.

002.25 DIRECTOR. The director of Medicaid and Long-Term Care.

002.26 DISCHARGED WARD. An individual who has been discharged as a ward of a court or tribe.

002.27 EDUCATIONAL INSTITUTION. A properly licensed or credentialed school, college, university, or vocational or technical training facility.

002.28 EFFECTIVE INCOME LEVEL. The income standard applicable under the State Plan for an eligibility group, after taking into consideration any income disregards applied in determining financial eligibility for the group.

002.29 ELECTRONIC ACCOUNT. An electronic file consisting of information collected or generated by the Department regarding client Medicaid or Children's Health Insurance Program (CHIP) eligibility and enrollment.

002.30 ELIGIBILITY DETERMINATION. An approval or denial of eligibility, as well as any renewal or termination of eligibility.

002.31 EMANCIPATED MINOR. A child 18 years old or younger who is considered an adult because he or she has:

- (A) Married;
- (B) Moved away from his or her parent's(s') home and is not receiving support from his or her parent(s); or
- (C) If a pregnant child, 18 years old or younger, is denied financial support by her parents, guardians, or custodians due to her refusal to obtain an abortion, the pregnant child shall be deemed emancipated for purposes of eligibility, except that benefits may not be used to obtain an abortion.

002.32 FEDERAL POVERTY LEVEL (FPL). The current federal poverty level in effect for the applicable budget period used to determine an applicant's eligibility or a client's continued eligibility.

002.33 GUARDIAN OR CONSERVATOR. A person appointed by a court of competent jurisdiction to be in charge of the affairs of another person who cannot effectively manage his or her own affairs because of his or her age or incapacity.

002.34 GUARDIAN AD LITEM (GAL). A person appointed by a court of competent jurisdiction to protect the best interests of a minor or vulnerable adult in a specific legal action.

002.35 HEARING. An administrative proceeding before the Director or his or her designee. During a hearing, a client, applicant, or his or her authorized representative may present evidence with or without the help of witnesses to show why the action as indicated on the relevant Notice of Action or inaction of the Department should be corrected by the Department.

002.36 INCAPACITY (PHYSICAL OR MENTAL). As determined by the Social Security Administration (SSA) or the State Review Team (SRT), any physical or mental illness, impairment, or defect, which is expected to last at least 30

days, that is so severe as to reduce substantially or eliminate a parent's ability to provide support or care for a child(ren). Age itself is not considered incapacity.

002.37 INQUIRY. Any question received by phone, letter, electronically, or personal contact without any indication that the individual wishes to apply. This may or may not be followed by an application for Medicaid.

002.38 IRREGULAR INCOME. Income, earned or unearned, that varies in amount from month to month or that is received at irregular intervals.

002.39 LAWFULLY RESIDING. Qualified alien pregnant women and children who are lawfully present in the United States and who are residents of Nebraska.

002.40 MEDICAID. A joint federal and state program under Title XIX of the federal Social Security Act, as amended, that provides medical assistance to eligible low-income individuals.

002.41 MEDICAL NEED. A condition of eligibility referring to a medical need.

002.42 MEDICAL PAYMENT. Payment from any health insurance plan, individual, or group or entity for medical expenses, whether for a client or any other member of his or her household.

002.43 MEDICAL SUPPORT. The obligation of a noncustodial parent to provide health insurance or pay medical costs.

002.44 MINIMUM ESSENTIAL COVERAGE. Coverage under a specified government-sponsored program, an eligible employer-sponsored plan, a health plan offered in the individual market, a grandfathered health plan, or other health benefits coverage that is recognized by the federal government.

002.45 MINOR PARENT. An individual 18 years old or younger, with a child.

002.46 NON-APPLICANT. An individual who is not seeking an eligibility determination for himself or herself and is included in an applicant's or client's household to determine eligibility for the applicant or client.

002.47 NOTICE OF ACTION (NOA). A statement sent by the Department to an applicant, client, or his or her Authorized Representative that includes a reasonably short, plain statement of the action(s) taken by the Department, the factual reason(s) for the action, and reference to the applicable regulatory law(s) or otherwise that authorizes the action(s).

002.48 PARENT OR CARETAKER RELATIVE (PCR). A relative of a dependent child by blood, adoption, or marriage, with whom the child is living, who assumes primary responsibility for the child's care, and who is one of the following:

- (A) The child's father, mother, grandfather, grandmother, brother, sister, stepfather, stepmother, stepbrother, stepsister, uncle, aunt, first cousin, nephew, or niece;

- (B) The spouse of the parent or relative, even if the marriage is terminated by death or divorce; or
- (C) Another relative of the child based on blood, adoption, or marriage, or an adult with whom the child is living and who has provided sufficient documentation of a court-ordered guardianship or conservatorship of the child.

002.49 PENDING. A case in which a complete and signed application has been received and eligibility has not yet been determined by the Department.

002.50 POSTPARTUM PERIOD. The period following the end of a pregnancy, which begins on the last day of pregnancy, then extends 60 days, and ends on the last day of the month in which the 60-day period ends.

002.51 POSTPARTUM PERIOD (EFFECTIVE JANUARY 1, 2024). A continuous 12-month period directly following the end of a pregnancy, which begins on the last day of pregnancy, regardless of the reason the pregnancy ends and extends through the end of the month in which the 12-month period ends.

002.52 POWER OF ATTORNEY (POA). A written and notarized authorization allowing one person to act for another person. The powers granted may be general or may be limited to specific circumstances. A power of attorney (POA) may be durable, in which case the powers continue to exist even if the appointing individual becomes legally incompetent. A power of attorney (POA) ceases to be effective upon the death of the appointing individual.

002.53 PREGNANT WOMAN. A woman during pregnancy and the postpartum period.

002.54 PROSPECTIVE ELIGIBILITY FOR MEDICAL ASSISTANCE. The date of eligibility beginning the first day of the month of the date of application if the client was eligible for Medicaid in that same month.

002.55 REASONABLY COMPATIBLE. For each eligibility factor, except social security number, citizenship, and immigration status, reasonable compatibility shall be applied. Electronic data matches shall be used when applicable and compared to an applicant's or client's self-attestation of information.

002.56 RETROACTIVE ELIGIBILITY. The date of eligibility beginning no earlier than the first day of the third month before the month of application.

002.57 SECURE ELECTRONIC INTERFACE. An interface which allows for the exchange of data between Medicaid and insurance affordability programs.

002.58 SPONSOR. A citizen or national of the United States, or an alien who is lawfully admitted to the United States for permanent residence, living in any state or the District of Columbia, who is 18 years of age or older and is petitioning or has petitioned for the admission of a noncitizen(s) under Section 204 of the Immigration and Nationality Act. An organization cannot be a sponsor.

002.59 SPOUSAL SUPPORT. Alimony or maintenance support for a spouse or former spouse.

002.60 STANDARD OF NEED. The maximum standard according to eligible unit size and living arrangement.

002.61 STATE PLAN. The written plan between the Department and the federal government that authorizes and describes how the Department administers Medicaid.

002.62 STUDENT. An individual who is 18 years old or younger and attending a secondary school or the equivalent level of vocational or technical training.

002.63 THIRD-PARTY RESOURCES. The legal obligation of a third party, including certain individuals, entities, insurers, and programs, to pay for or provide monies or benefits. Third-Party Resources include Casualty, Child Support, Medical Payment, Medical Support, and Spousal Support. Medicaid is the payer of last resort.

002.64 TIMELY NOTICE. A notice of case action dated and mailed at least 10 calendar days before the date the action becomes effective.

002.65 UNIT. The number of individuals in a household.

002.66 WITHDRAWAL. A voluntary written or verbal retraction of an application.

